

**Justification and Approval (J&A) for Other Than Full and Open Competition**

NOTE: If a Justification and Approval was approved for the preceding acquisition, a copy of the approved J&A for the predecessor action must be included in the staff package for approval of the instant J&A. This applies to J&A staff packages that are submitted for review and approval at a level above the contracting officer. The predecessor J&A will be used as a reference document by the approving official.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined in the [AF Bridge Action Reduction Plan?](#) ☐ Yes ☒ No

Funding level for this acquisition: [REDACTED]

Contracting Activity: AFLCMC/WAM

Purchase Request / Local ID Number: FD2020-25-50718

Program / Project (and PE, if applicable): Engineering Services for CCIU, CDEEU, DVR, ACPDG, and ACMFC

Program Type (PEO or Other Contracting): Other Contracting

Authority: 6.302-1 – 10 USC 2304(c)(1), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): [REDACTED]

J&A Type: ☐ Class ☒ Individual

COORDINATION ([AFFARS 5306.304\(a\)](#))

Date	Diane Wood Program Manager [REDACTED]	Signature	[REDACTED]
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APPROVAL ([AFFARS 5306.304\(a\)](#))

Date	Eric Dumpert F-16 System Contracting Officer AFLCMC/WAMK	Signature	[REDACTED]
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I. Contracting Activity.

United States Air Force
AFLCMC/WAMK
6072 Fir Avenue, Bldg 1233
Hill AFB UT 84056
Contracting Officer: Eric Dampert
PR Number: F2DCCM5070A003

II. Nature and/or description of the action being processed.

A. Upon approval to use other than full and open competition procedures, the United States Air Force (USAF) will enter into a new services contract with Elbit Systems of America, Inc. (EFW, Inc.), 4700 Marine Creek Parkway, Ft Worth, TX 76179-3505, Cage Code: OWEC9. This service will support the 309th SMXS group.

B. Contract Type & Structure: A Cost-Plus-Fixed-Fee (CPFF) services contract with a five-year basic ordering period to provide Engineering Services in support of 518th SMXS/MXDED sustainment activity for avionic subsystems. A Cost Reimbursable No Fee type will be used for a portion of this contract on the Travel CLIN, IAW FAR 16.301-2. The estimated award date is 30 September 2025 with performance and delivery through September 2030 for of Operations and Maintenance (3400) funds.

C. Type J&A: Individual

III. Description of supplies/services required to meet agency needs.

A. Under the contemplated contract EFW, Inc., will provide engineering service assistance on five (5) separate aircraft subsystems. Approximately 2,760 staff-hours will be acquired for on-call (unscheduled) assistance as required to support aircraft wiring modification, subsystem hardware modification, and software modification specific to the :

B. Commercial Central Interface Unit (CCIU)

C. Commercial Data Entry Electronics Unit (CDEEU)

D. Digital Video Recorder (DVR)

E. Advanced Color Programmable Display Generator (ACPDG)

F. Advanced Color Multi-Function Display (ACMFD)

The contractor shall supply all documentation updates to technical manuals in order to accurately reflect and reference any modified operational software revisions for the products listed. Hardware and software engineering assistance shall include, but is not limited to:

G. Subsystem diagnosis and failure analysis

H. Recommendation for repair/replacement of defective hardware or electronic components

I. Recommendation for software update or repair

J. Issue of updated/modified operational software revisions

K. Recommendation for sustainment, repair and maintenance activity

C. The contractor shall provide assistance as necessary to isolate subsystem failures to software or hardware, and then provide diagnostic aids or recommendation for problem resolution. The contractor shall assist with integration of new or modified software or hardware being implemented into the five (5)



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avionic subsystems listed above. Upon completion of each engineering assistance task the contractor shall provide summary report as requested by the Program Manager. The contractor shall provide updates for engineering manuals, interface documentation and software description documentation if any changes are made.

D. The total period of performance is anticipated at five (5) years. Type of funds used for this effort will be Operational & Maintenance (3400) funds. It is not feasible for the acquisition to be competitive during the year.

E. Listed below are the anticipated CLINs in support of the subject requirement:

Basic			
CLIN	Description	Projected Hours	Estimated Total
0001	Engineering Support		
0002	Travel		
Total			

F. EFW, Inc., is the Original Equipment Manufacturer (OEM) for the CCIU, CDEEU, DVR, ACPDG and the ACMFD, and has the knowledge and expertise to provide detailed engineering assistance with design, integration, modification and failure analysis for the five (5) listed avionic subsystems in a successful, and cost effective manner. The Government has restricted rights to firmware, hardware design documents, Board Support Package (BSP) software and Operational Flight Program (OFP) software for each subsystem. Per the OEM, currently no other contractor has access to the intellectual property or software/firmware code required to conduct investigation, perform analysis, and modify software or firmware of these avionic subsystems. This restricts Hill Air Force Base to contract with EFW, Inc. for the required engineering assistance. EFW, Inc. is the only contractor who has all the data rights needed to complete this contract.

G. Software included in the listed avionic subsystems is unique and the Government's right to the source code is restricted. Only EFW, Inc. has the rights and capability to provide the required assistance and source code modification for the software.

IV. Statutory authority permitting other than full and open competition.

10 U.S.C. 2304 (c) (1), as implemented by FAR 6.302-1

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

A. The initial contracts for the production of the CCIU, CDEEU, DVR, ACPDG and the ACMFD included restricted rights associated with EFW, Inc. [REDACTED]

The subsystem development contractor EFW, Inc. is the only responsible contractor with the data rights, [REDACTED] necessary to satisfy the Government's requirement for the continued fielding and maintenance of the F-16 Avionics subsystems listed above. Therefore, this service acquisition is for the continued performance of highly specialized service.



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B. Under the contemplated contract and in accordance with FAR 6.302-1, EFW, Inc. will provide Hill Air Force Base with on-call engineering assistance for all five (5) EFW, Inc. avionic subsystems used on the USAF F-16 aircraft only.

C. The Government does not own the data rights to the source code. This dictates the service availability from one source. The 309th SMXG and AFLCMC/WAMB believes that award to any other source would result in substantial duplication of cost to the government that is not expected to be recovered through competition in fulfilling the Air Forces requirement. Without access to the software code and documentation, another contractor would have to reverse engineer the current systems or acquire data rights from EFW, Inc. It is estimated that it would cost approximately \$6M per unit and a minimum of five (5) years to accomplish.

This estimate does not take into consideration the development of the intellectual knowledge that would be required to support the effort, or the time and cost for testing to ensure operational functionality. Thus the total estimated cost for another contractor to support the government's requirement is \$30M (not including contract fees) and five (5) years as compared to other like items engineering done by Space Dynamics Lab on two configurations of the Enhanced Color Programmable Display Generator done under contract NOO173-08-D-2002. And a ROM for a Level-3 drawing package of \$9.7M for the DVR. As the single producer of the subsystem hardware and software, EFW, Inc. is currently the only contractor in possession of the technical data, documentation, and detailed knowledge of the subsystems to successfully provide support.

D. EFW, Inc. is the OEM, and owns the intellectual property, software/firmware code and hardware design for the CCIU, CDEEU, DVR, ACPDG and ACMFD. The Contract includes unscheduled and on-call support provided by communication, visits, data rights, tooling, equipment, software, and upgraded OEM manuals that reflect modifications for any of the listed avionic subsystems.

E. Awarding this sole-source contract will ensure continual operational mission functions of the CCIU, CDEEU, DVR, ACPDG, and ACMFD. If this contract is not awarded the government will be subject to significant delays in problem resolution, sustainment activity, and capability implementation related to each of the listed subsystems. Failures of these subsystems directly result in reduction of Mission Capability rates, which affect the Air Force's ability to accomplish real world operational missions. The most economically sound and technologically efficient way forward with this procurement is as proposed through a contract providing engineering assistance needed for CCIU, CDEEU, DVR, ACPDG and ACMFD through EFW, Inc.

F. Accordingly, EFW, Inc. is the only contractor capable of providing the supplies and services described in Section III above without the U.S. Air Force experiencing substantial duplication of costs that could not be expected to be recovered through competition.

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

A. The government posted a Sources Sought Synopsis (SSS) notice, Engineering Services: F-16 Avionics Hardware and Software Integration, was posted on SAM.gov on 27 February 2025 for 30 days with a response date of 31 March 2025. The Sources Sought request companies to provide engineering assistance related to hardware and software integration for the CCIU, CDEEU, DVR, ACPDG and the ACMFD.

B. The following four (4) companies responded to the SSS: RV Global Solutions, Inc., SRR International, Rylex, and Elbit Systems of America, Inc (EFW). SRR, Rylex, and RV Global Solutions Inc., replies were a sales brochure addressing other products/services they offered but did not address their ability to accomplish software/hardware integration for CCIU, CDEEU, DVR, ACPDG or ACMFD without data from the OEM or Government.



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C. This effort will be synopsized in FBO as a notice of contract action IAW FAR 5.201. If other sources express interest as a result of this synopsis or other actions, they will be listed in the contract file.

D. Other actions: None

E. Qualifying sources: None

VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The cost of this acquisition will be fair and reasonable. Actions anticipated to ensure reasonableness of the price will be accomplished with the procedures and criteria contained in the Federal Acquisition Regulation under parts 30 - Cost Accounting Standards, and 31 - Contract Cost Principles and Procedures, and Subpart 15.4 - Contract Pricing, as appropriate. Further actions will be under the guidance of the Contract Pricing Reference Guides jointly developed by the Federal Acquisition Institute and the Air Force Institute of Technology. The AFMC Guide for Price Negotiation Memorandum/Price Competition Memorandum (PNM/PCM) will also be used, as appropriate. Detailed documentation and justification of price reasonableness will be disclosed in the official PNM, to be prepared upon completion of negotiations.

VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

A. As described in Section VI above, market research, in accordance with FAR Part 10, was conducted by synopsis of the proposed acquisition, advising industry of the pending acquisition and soliciting inquiries from interested parties. This was an effort to determine if there were other sources capable of satisfying this requirement.

B. Market research was conducted which consisted of Google, Yahoo, and Haystack searches. No other sources could meet the Air Force requirement. In accordance with FAR Part 10, engineering has determined that these avionic subsystem designs and their associated documentation are not available from any other commercial enterprise and that there are no commercial or developmental items available that could be modified to satisfy the agency's needs.

IX. Any other facts supporting the use of Other Than Full and Open Competition.

None

X. List of any sources that expressed, in writing, an interest in the acquisition.

Elbit Systems of America

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

Engineering documentation and computer source code for the CCIU, CDEEU, DVR, ACPDG and ACMFD



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is anticipated to remain solely available to the OEM. Future contracts for engineering services for the listed avionic subsystems are anticipated to be sole source; however, the acquisition of replacements and upgrades will be through competitive source, selection and will include the required data to allow for future competition in subsystem support requirements.

XII. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XIII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.